

4.3. Article 112a(2)(c) EPC – alleged fundamental violation of Article 113 EPC

4.3.1 General

The decisions of a board of appeal may only be based on grounds or evidence on which the parties have had an opportunity to present their comments (Art. 113(1) EPC), and a patent application or a patent may only be examined in the text submitted or agreed by the applicant or proprietor of the patent (Art. 113(2) EPC). For general information on the right to be heard under Art. 113 EPC, see chapter III.B. "Right to be heard".

In most petitions for review, the alleged fundamental violation of Art. 113(1) EPC is among the grounds on which the petition is based. All petitions for review that have been successful so far concern a fundamental violation of Art. 113 EPC (see in this chapter V.B.4.3.19 and in this chapter V.B.4.4.3).

4.3.2 "Fundamental" violation of Article 113 EPC – causal link and adverse effect

A violation of Art. 113 EPC can only be considered fundamental within the meaning of Art. 112a(2)(c) EPC if there is a causal link between the alleged violation and the final decision (R 1/08, R 11/08, R 11/09, R 13/09, R 6/13, R 2/14 of 22 April 2016, R 17/14, R 6/16).

In R 22/10 the Enlarged Board held, referring to the jurisprudence of the boards of appeal, that such a necessary causal link does not exist when, even if a procedural violation can be demonstrated, the same decision would have been taken for other reasons (see also R 19/09).

In R 8/16 the Enlarged Board held that an alleged violation could not be fundamental, in the sense of intolerable, if it did not cause an adverse effect. In the case in hand the Enlarged Board stated that the omission of the reasons for the admission of the main request may not be a practice which it expressly endorsed but given that the petitioner did not explain and the Enlarged Board itself could not see what adverse effect might have been caused by not hearing the petitioner on this issue, and given that the admission of the petitioner's main request was clearly a positive result for the petitioner, it was not seen as a fundamental violation of Art. 113(1) EPC.

4.3.3 No prior assessment of the merits of a submission

The right to be heard is a fundamental right of the parties which has to be safeguarded irrespective of the merits of a submission. The necessity to respect it is absolute and cannot be made dependent on a prior assessment of the likelihood that the petitioner's arguments would have convinced the board (R 3/10, R 5/13). In the context of review proceedings the Enlarged Board is not entitled to go into the merits of a party's case. It is not entitled to assess whether or not and to what degree, if any, a party's standpoint which it alleges it would have taken had it been given the opportunity to present it, would have been well-founded (R 3/10).

In R 21/11 the Enlarged Board stated that it could not be ruled out that a different decision would have been reached if the party had been heard on the point on which it alleged its right to be heard had been infringed.

4.3.4 Objective approach – board's intention irrelevant

In R 3/10 the Enlarged Board held that when determining whether a fundamental violation of the petitioner's right to be heard had occurred, an objective approach must be applied. It is therefore not relevant that it was not the deciding board's intention in any way to deprive the petitioner of its right to be heard orally on the issue of inventive step.

4.3.5 No obligation to provide detailed reasons for a decision in advance

It is settled case law that a board of appeal is not required to provide the parties in advance with all foreseeable arguments in favour of or against a request (R 1/08 with reference to G 6/95, OJ 1996, 649; see also R 13/09, R 18/09, R 4/13, R 5/15, R 6/16, R 9/18). In other words, parties are not entitled to advance indications of all reasons for a decision in detail (see e.g. R 12/09 of 15 January 2010, R 15/09, R 4/11, R 18/12, R 2/13, R 9/14, R 7/15, R 8/17). This principle also applies to an interpretation of a passage in the state of the art forming only part of such reasons (R 19/11, R 15/12, R 16/13), and to reasons of any level of generality (R 10/17).

4.3.6 Boards' obligation to remain neutral

According to settled case law, a board must remain neutral in *inter partes* proceedings, both in its communications to the parties and in oral proceedings (R 15/09; see also R 11/08), especially when the opposing party is not present (R 9/14). By giving a party possible reasons to decide against its requests (R 18/09, R 15/10), by prompting a party to make further submissions (R 9/11, R 3/13, R 17/13), by informing a party of a possible different interpretation of a passage in a prior art document (R 19/11; see also R 18/09), or by suggesting a possible wording of a claim (R 4/09, R 22/10; see also R 7/14) a board would assist a party and compromise its neutrality (see also R 1/19).

4.3.7 Parties' obligation to participate actively in the appeal proceedings

Corresponding to a board's obligation to remain neutral (see in this chapter V.B.4.3.6), parties are obliged to participate actively in the appeal proceedings (R 2/08, R 6/12, R 12/12), in particular in *inter partes* proceedings (R 15/09, R 12/09 of 15 January 2010). Parties and their representatives are responsible for the conduct of their case and it is for them to submit the necessary arguments to support their case on their own initiative and at the appropriate time (R 17/12; see, by way of example, also R 18/09, R 13/11, R 17/12, R 1/13, R 15/13, R 1/17). It is for the parties to address any point they consider relevant and fear may be overlooked and to insist, if necessary by way of a formal request, that it be discussed in the oral proceedings. If then a board does not give a party the opportunity to bring forward its arguments, this may give rise to the complaint that the right to be heard under Art. 113(1) EPC has been infringed (R 17/11, see also R 6/16, R 6/17, R 5/17).

4.3.8 Reasons for a decision allegedly surprising

a) No opportunity to comment, surprising reasons

"Grounds or evidence" under Art. 113(1) EPC is understood as the essential legal and factual reasoning on which a decision is based (see chapter III.B.2.3.2 "The meaning of 'grounds or evidence'").

While the boards are not obliged to provide the parties in advance with all reasons for a decision in detail (see in this chapter V.B.4.3.5), Art. 113(1) EPC requires that decisions may only be based on grounds or evidence on which the parties concerned have had an opportunity to present their comments. In R 3/13 the Enlarged Board held that this implied that a party may not be taken by surprise by the reasons of a decision referring to unknown grounds or evidence (see also R 15/09, R 21/10).

In R 3/10, R 15/11 and R 16/13 the petition was allowed because of surprising reasons on which the parties had not been given an opportunity to comment (see in this chapter V.B.4.3.19). On the other hand, in R 19/11 the Enlarged Board held that there can be no denial of the right to be heard if a board of appeal, after hearing all parties in inter partes proceedings, subsequently reaches its own conclusion which is then recorded in its written decision (see also R 15/12, R 16/13, R 10/17, R 7/18).

In R 6/18 the Enlarged Board found that it could not come as a surprise that the board, when deciding whether there was an unambiguous disclosure of the claimed invention, did not only consider the passage *sensu stricto* referred to by the petitioner but also the sentences which directly followed that passage. Parties had to be aware that in general the question of added matter could not be decided by simply relying on isolated passages of the description but required a comprehensive analysis of the application documents.

Referring to R 8/13 of 15 September 2015, the Enlarged Board stated in R 5/19 that submissions parties made (only) in writing also had to be taken into account and that appeal proceedings were conducted mainly in writing. Parties were not required to reiterate those written submissions at the oral proceedings to ensure they were taken into account in the decision.

b) Grounds not emanating from the board

Grounds or evidence within the meaning of Art. 113(1) EPC need not emanate from the board, it is sufficient if another party raises the objection (R 2/08; see also R 1/08, R 1/13, R 6/16). If the reason given in a decision corresponds to an argument put forward by the other party, the petitioner was aware of it and thus not taken by surprise (R 4/08, R 12/09 of 15 January 2010; see also R 8/14), unless the board clearly indicated that it regarded those arguments as not convincing (R 11/12, see also R 6/16).

c) Subjective surprise

A subjective surprise has no bearing on whether a party knew the issues which might be raised and had an adequate opportunity to comment thereon (R 13/11, R 17/12; see, by way of example, also R 12/09 of 15 January 2010, R 22/10, R 1/13, R 3/13, R 4/14, R 5/16).

In R 8/13 of 15 September 2015 the Enlarged Board held that in order to determine which subject matter (grounds, facts and evidence) could have been expected to be discussed, and whether new facts and grounds were introduced ex officio by a board of appeal in its decision, the Enlarged Board has to check the file history (see also R 1/15).

In R 8/14 the Enlarged Board held that establishing the closest prior art is part of the process of arriving at a decision and takes place only after all arguments have been heard, in the final deliberations of the board. If the closest prior art is redefined because of an amendment to a claim, the board is not obliged to address this at oral proceedings. In R 2/16 the Enlarged Board found that there had been no need for the board hearing the case at issue to give advance notice of the objective technical problem defined in accordance with the problem-solution approach, nor to comment on whether the invention was obvious, in order to comply with the appellant's right to be heard. In its communication, the board had set out in great detail what prior art it was taking as the starting point and how it considered it to differ from the claimed invention. It had expressly stated that the issue of the problem solved would be settled at the oral proceedings and clearly specified which documents it provisionally considered relevant for assessing obviousness.

The petitioner in R 4/16 asserted that there had been at least some confusion on its part as to the scope of the discussion. The Enlarged Board held that whether or not a petitioner might have been confused was a highly subjective matter and was not enough by itself to establish that there had been a fundamental violation of its right to be heard. The most important thing was to examine the objective evidence of how the oral proceedings had unfolded, taking into account their place within the overall context of the appeal proceedings as a whole.

d) Reasoning formed part of the proceedings

In R 4/11 the Enlarged Board held that in order for the decision to comply with Art. 113 EPC it was sufficient that the party concerned had an adequate opportunity to present its point of view to the board before a decision was taken, that the board considered the arguments presented by the party and that the decision was based on a line of reasoning that could be said to have been in the proceedings (see also R 11/12, R 18/12). Several further cases in which the petitioner claimed that the decision under review took it by surprise have been rejected by the Enlarged Board:

In R 7/12 the Enlarged Board found that the argument in question was "part of the appeal proceedings". See also R 8/09 in which the Enlarged Board found that the document in question "formed part of the debate".

In R 9/14 the Enlarged Board stated that it was sufficient that the "relevance [of a factor] became clear during the proceedings".

In R 22/10 the Enlarged Board found that the decision did "not contain any reasons which could not be objectively foreseen".

In R 8/13 of 15 September 2015 the Enlarged Board held that "a representative with normal experience and training could foresee what the crucial issues were for the board".

4.3.9 Timing of a decision allegedly surprising

It is not sufficient to claim that the duration of the oral proceedings resulted in a violation of the right to be heard. The petitioner must rather establish that, for reasons of lack of time, it was deprived of the possibility to defend its case properly, resulting in a decision based on grounds that it did not have an opportunity to comment upon (R 2/12 of 17 October 2012).

In R 14/10 the petitioner argued that he was surprised that the requests as read out would be interpreted as his final requests. The Enlarged Board held that that the chairman had also read out the opponent's request "that the decision under appeal be set aside and that the European patent [...] be revoked" indicated beyond any reasonable doubt that, after the closure of the debate, the board had intended to deliberate on the patentability of independent claims and that, depending on the outcome of said deliberation, it could pronounce the revocation of the patent as a whole (see also R 7/14).

In R 4/12 the Enlarged Board stated that when a board, after discussing novelty, interrupts oral proceedings for deliberation, a party should be aware that the board could take a negative decision on novelty. In R 3/10 the Enlarged Board held, however, that be surprising for a party if only novelty was discussed and a request is then rejected due to lack of inventive step (see in this chapter V.B.4.3.19).

4.3.10 Consideration of the parties' arguments in the written decision

a) Requirement to have comments considered

The right to be heard under Art. 113(1) EPC requires that those involved be given an opportunity not only to present comments (on the facts and considerations pertinent to the decision) but also to have those comments considered, that is reviewed, with respect to their relevance for the decision in the matter (R 23/10; see also R 13/12, R 12/14). In R 8/11 the Enlarged Board held that Art. 113(1) EPC obliged the decision-making body to allow the parties to present the necessary arguments on all essential aspects of the case, to take note of these arguments and to acknowledge them in its decision (see also R 19/12 of 12 April 2016). In R 8/15 the Enlarged Board stated that a party must be able to examine whether the board has afforded it the right to be heard in order to decide whether or not to file a petition for review.